



Delaware County Commissioners Meeting October 3rd 2022

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=o-wK59AjkIU
Publication Date	2022-10-03T15:49:12Z
Target Category	delaware_county

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Municipal Meeting Summary Report

Meeting Date: October 3, 2022

Board Name: Delaware County Commissioners

1. Pre-Meeting Hearings & Committee Work Sessions

- **Session Type & Topic:** Public Hearing on the vacation of a street and alley in Medford, Delaware County [00:01:15](#).
- **Summary of Discussion:** Jacob O'Connor presented on behalf of petitioners Susan and Jeff Felton and Paul Boyles, who own properties in Medford. A potential buyer's lender raised an issue because an existing shed and garage overlap an unimproved alleyway situated between the petitioners' lots. Additionally, an unimproved street (Washington Street) runs on the north side of the property. The petitioners requested the vacation of these right-of-ways to clear title for the real estate transaction. No members of the public spoke in opposition. The public hearing was closed by a roll call vote (Mister Henry: Yes, Mister King: Yes, Miss Riggin: Yes) [00:04:43](#).

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** Presiding officer called the meeting to order at 9:01 AM on Monday, October 3, 2022 [00:00:18](#).
 - **Attendance:**
 - **Present:** Mr. King, Mr. Henry, Miss Riggin, Miss Dunsmore, Miss Smith.
 - **Absent:** Mr. Craycraft, Miss Patterson.
 - **Presiding Officer:** Not explicitly stated by name, but leading proceedings.
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3. Preliminary & Procedural Business

- **Ceremonial Openings:** Recitation of the Pledge of Allegiance [00:00:23](#).
 - **Approval of Minutes:** Minutes from the September 19 meeting were approved by roll call vote (Mister King: Yes, Master Henry: Yes, Miss Riggin: Yes) [00:10:49](#).
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4. Substantive Business & Board Action

- [00:05:03](#) **Discussion on Proposed County Noise Ordinance**
 - **Sponsor / Presenter:** Commissioner Henry and County Sheriff Tony Skinner.
 - **Deliberation Summary:** The board discussed a previously tabled noise ordinance. Sheriff Tony Skinner addressed the board, stating that he and Commissioner Henry discussed the proposal over the weekend. Sheriff Skinner advised against passing a new county noise ordinance, noting that Indiana's state disorderly conduct statute provides sufficient legal backing (class B misdemeanor with jailable offenses) and avoids overburdening deputies with specialized decibel-measuring equipment.
 - **Action & Vote Disposition:** The board voted to take the ordinance off the table and formally decline/not pass it on second reading by roll call vote (Mister Henry: Yes, Mister King: Yes, Miss Riggin: Yes) [00:10:35](#).
- [00:11:01](#) **Presentation: Tom Brindle Award to Kyle Johnson**
 - **Sponsor / Presenter:** Shane Rackwell (Indiana Market Manager for Indigital) and Fred Cummings.
 - **Deliberation Summary:** Shane Rackwell presented the Tom Brindle Award to Kyle Johnson, Delaware County GIS Coordinator, recognizing his instrumental work and hundreds of hours remapping the entire county during the delayed deployment of the new Computer-Aided Dispatch (CAD) system.
 - **Action & Vote Disposition:** Informational presentation; no board action required.
- [00:18:34](#) **2023 Holiday Schedule Agreement**
 - **Sponsor / Presenter:** Jenny (Administration).
 - **Deliberation Summary:** Jenny explained that because New Year's Eve falls on a Sunday in 2023, an extra holiday day was added to July 5th so employees receive both July 4th and 5th off, keeping the total number of annual holidays consistent.

- **Action & Vote Disposition:** Approved by roll call vote (Mister Henry: Yes, Mister King: Yes, Miss Riggins: Yes) 00:19:16.
- **00:19:31 INDOT Bridge Replacement Detour Agreement (State Road 28 and 67 over Mississippi River)**
 - **Sponsor / Presenter:** Angie.
 - **Deliberation Summary:** Angie presented an unofficial detour agreement with INDOT regarding an upcoming 120-day bridge replacement closure on State Road 28 and 67. INDOT established an official detour via State Roads 28, 3, 167, and 67. The local unofficial detour agreement covers Old Granville Road (between State Road 67 and Blacksmill Road) and Blacksmill Road. Signing the agreement ensures INDOT pays for subsequent road repairs resulting from diverted traffic.
 - **Action & Vote Disposition:** Approved by roll call vote (Mister King: Yes, Mister Henry: Yes, Miss Riggins: Yes) 00:21:43.
- **00:22:14 Ordinance 2022-023: Vacation of Streets and Alleys in Medford**
 - **Sponsor / Presenter:** Board / Legal Counsel.
 - **Deliberation Summary:** Ordinance concerning the Medford street and alley vacation heard during the earlier public hearing.
 - **Action & Vote Disposition:** Introduced by roll call vote (Mister King: Yes, Mister Henry: Yes, Miss Riggins: Yes). Rules were suspended by roll call vote (Mister Henry: Yes, Mister King: Yes, Miss Riggins: Yes), and the ordinance was adopted on final reading by roll call vote (Mister King: Yes, Mister Henry: Yes, Miss Riggins: Yes) 00:23:07.
- **00:23:21 Special Event Registration: Grace and Mercy Full Gospel Church Fall Bash**
 - **Sponsor / Presenter:** Administration / Jerome and Cindy Benefield.
 - **Deliberation Summary:** Special event registration for a Fall Bash scheduled for October 29-30 at 5015 East State Road 28. No local road closures are required.
 - **Action & Vote Disposition:** Approved by roll call vote (Mister Henry: Yes, Mister King: Yes, Miss Riggins: Yes) 00:23:54.
- **00:34:45 Payment of Claims**
 - **Sponsor / Presenter:** Administration.
 - **Deliberation Summary:** Routine approval of standard claims totaling \$1,038,233.14 and ARP claims totaling \$21,674.17.
 - **Action & Vote Disposition:** Approved by roll call vote (Mister King: Yes, Mister Henry: Yes, Miss Riggins: Yes) 00:35:01.

5. Open Public Comment / Citizen Forum

- No general public comments were made during the citizen forum segment near the conclusion of the meeting (00:35:07, noting zero comments submitted via Facebook).

6. Administrative Updates & Adjournment

- **Staff / Board Announcements:**

- Tommy Humberg (County Highway Department) and Bobby Doherty discussed upcoming traffic safety measures, lowering speed limits from 50 to 40 mph on specific narrow rural roads (such as 800 East from 32 to Edgewater), establishing multi-way stops (including 800 East at Centennial / 100 North, and Division Road at 800 West), and addressing visibility and speed issues near a new dumping/industrial site on McGalliard Road. Sheriff Skinner reminded the board that the default prima facie speed limit for unmarked county roads in Indiana is 50 miles per hour.
- Public hearings and ordinances for the proposed speed limit changes will be prepared for upcoming meetings.

- **Adjournment:** The meeting was recessed/adjourned by voice/roll call vote (Mister Henry: Yes, Mister King: Yes, Miss Riggin: Yes) at 00:35:30.

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